

LETTER TO YOUR MLA

Fill in the shaded boxes. Everything else is written for you.

Your MLA's name

Date

Subject: AR 96/2026 s.15(4) — my disability flares, and this regulation penalises that

Dear ,

I am your constituent. I was moved from AISH to the Alberta Disability Assistance Program on July 2, 2026. Nobody assessed me. No one looked at my file. It happened by operation of law.

I am writing about section 15(4) of Alberta Regulation 96/2026, which provides:

“A director may refuse, suspend, vary or discontinue a benefit provided under section 3.02 of the Act... if, in the director's opinion, the applicant or client has (a) refused to seek or accept or has reduced or terminated the applicant's or client's reasonable employment, or (b) refused or neglected to participate in or make use of an employment support.”

Section 3.02 is ADAP. This power does not apply to people who stayed on AISH. And section 16(a) requires me to notify a director when my employment ends.

My situation.

I live with this condition, and it is episodic:

This is what a flare does to me:

Up to 2500 characters. Take the room you need to describe a flare in your own words.

Here is the bind the wording puts me in. When I flare, I must manage my employer under their rules — which may demand a doctor's note that a flare makes impossible to obtain. And separately, section 16(a) requires me to report to ADAP that my employment was reduced. That same report is the fact section 15(4) lets them cut me for. One collapse, two systems, and the second report is a report against myself.

The regulation does not distinguish between someone who will not work and someone who cannot. There is no exemption for illness anywhere in it. And “reasonable employment” is not defined. Because it is undefined, it takes its ordinary meaning — fair, practical, within the limits of reason. By that plain meaning, it is not reasonable to expect someone whose disability is episodic to hold employment their body periodically makes impossible, or to prove during a collapse why they could not work.

What I am asking you to do:

1. Raise section 15(4) with the Minister of Assisted Living and Social Services.
2. Ask what protection exists in law — not policy — for a person whose employment is reduced by illness rather than by choice.
3. Ask what “reasonable” means, since it is nowhere defined, and how a standard of reasonableness can fairly be applied to people whose disabilities are episodic.
4. Ask why this power applies to ADAP clients and not to AISH clients, when tens of thousands of us were moved between the two without ever being assessed.

LETTER TO YOUR MLA (continued)

Fill in the shaded boxes. Everything else is written for you.

I am not asking for special treatment. I am asking not to be punished for having the condition that qualified me in the first place.

Please reply in writing.

Sincerely,

Your name

Your city or town

Your email

The Alberta Disability System Breakdown — Advocate

St. Albert, Alberta | July 2026

albertadisabilitybreakdown@outlook.com

General information, not legal advice. Regulation text quoted verbatim from AR 96/2026, in force July 2, 2026.